

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Matthew Donaghy	Team: Squad #14	CCRB Case #: 202001478	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Friday, 02/14/2020 1:00 AM, Friday, 02/14/2020 1:05 AM, Friday, 02/14/2020 2:30 AM	Location of Incident: § 87(2)(b) 43rd Precinct Stationhouse, 47th Precinct stationhouse	18 Mo. SOL 3/31/2022	Precinct: 43
Date/Time CV Reported Fri, 02/21/2020 12:05 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 02/21/2020 12:05 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Christian Diaz	21111	958502	043 PCT
2. SGT Richard Stevens	05621	955536	043 PCT
3. SGT Brian Wolvers	05630	946399	047 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 James McBrown	2788	942153	047 DET
2. POM Luis Adames	1210	959438	043 PCT
3. POM Jose Diaz	19344	959600	043 PCT
4. POM Felix Rodriguez	07060	954281	043 PCT
5. POM James Piccione	22183	959071	043 PCT
6. POM Kevin Goldrick	11302	963547	043 PCT
7. POM Timothy Breheny	07943	959508	043 PCT
8. POM Anthony Saladino	08666	961227	043 PCT
9. POM Nicholas Dalia	21242	958466	043 PCT
10. POF Chanell Joseph	18755	958732	047 PCT
11. POM Orlando Espinoza	21425	967863	047 PCT
12. SGT Randolph Penamedina	00327	953231	043 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . SGT Richard Stevens	Abuse: At § 87(2)(b) in the Bronx, Sergeant Richard Stevens issued an unlawful summons to § 87(2)(b)	A . Substantiated
B . SGT Richard Stevens	Force: At § 87(2)(b) in the Bronx, Sergeant Richard Steven used physical force against § 87(2)(b)	B . Substantiated
C . SGT Richard Stevens	Abuse: At the 43rd Precinct Stationhouse, Sergeant Richard Stevens did not obtain medical treatment for § 87(2)(b)	C . Substantiated

Officer(s)	Allegation	Inv. Div. Recommendation
D . POM Christian Diaz	Abuse: At the 43rd Precinct Stationhouse, Police Officer Christian Diaz did not obtain medical treatment for § 87(2)(b)	D . Substantiated
E . SGT Brian Wolvers	Abuse: At the 47th Precinct Stationhouse, Sergeant Brian Wolvers did not obtain medical treatment for § 87(2)(b)	E . Unsubstantiated
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		

Case Summary

On February 21, 2020, § 87(2)(b) called the CCRB and filed the following complaint.

On February 14, 2020, at approximately 1:00 a.m., § 87(2)(b) was involved in a fight at his place of work, § 87(2)(b) located at § 87(2)(b) in the Bronx, and his supervisor, § 87(2)(b) called the police. § 87(2)(b) walked away from the scene before multiple officers from the 43rd Precinct, including PO Christian Diaz, PO Felix Rodriguez, and SGT Richard Stevens, arrived on scene. § 87(2)(b) returned to the scene and SGT Stevens grabbed § 87(2)(b) by his arm, forcibly took him to the ground, and placed him into handcuffs, arresting him for disorderly conduct (**Allegation A: Abuse of Authority – substantiated**) (**Allegation B: Force – substantiated**). § 87(2)(b) was then transported to the 43rd Precinct stationhouse, where he was placed into a holding cell. While at the 43rd Precinct stationhouse, § 87(2)(b) complained of injury in the presence of SGT Stevens and PO Diaz, but he was not subsequently provided with medical attention (**Allegation C: Abuse of Authority – substantiated**) (**Allegation D: Abuse of Authority – substantiated**).

During his arrest processing, officers identified an active I-Card out of the 47th Precinct with probable cause to arrest § 87(2)(b) (Board Review 02). § 87(2)(b) was transported to the 47th Precinct stationhouse, where he requested medical attention from SGT Brian Wolvers, PO Orlando Espinoza, and PO Chanell Joseph of the 47th Precinct. However, SGT Wolvers did not obtain medical attention for § 87(2)(b) (**Allegation E: Abuse of Authority – unsubstantiated**).

§ 87(2)(g), § 87(4-b)
§ 87(2)(b) was issued a summons for disorderly conduct in relation to his arrest at § 87(2)(b) in the Bronx (Board Review 01). That summons is no longer listed in the New York State E-Courts database (Board Review 27). Though § 87(2)(b) was transferred to the 47th Precinct stationhouse in relation to an active I-Card, the Bronx District Attorney's office declined to prosecute § 87(2)(b) in relation to that case due to the complainant refusing to cooperate (Board Review 02).

The CCRB obtained multiple body-worn camera videos, including two recorded by PO Diaz (Board Review 08) (Board Review 15) and one recorded by SGT Stevens (Board Review 14). The CCRB also obtained stationhouse footage from the 47th Precinct stationhouse (Board Review 20) and § 87(2)(b) (Board Review 07) provided cell phone footage recorded by an unidentified witness to this incident. The relevant aspects of all footage is discussed in further detail below.

Findings and Recommendations

Allegation (A) Abuse of Authority: At § 87(2)(b) in the Bronx, Sergeant Richard Stevens issued an unlawful summons to § 87(2)(b)

Allegation (B) Force: At § 87(2)(b) in the Bronx, Sergeant Richard Steven used physical force against § 87(2)(b)

It is undisputed that § 87(2)(b) was arrested for disorderly conduct in front of § 87(2)(b) in the Bronx. It is further undisputed that § 87(2)(b) was forcibly taken to the ground by SGT Stevens.

At the time of this incident, § 87(2)(b) (Board Review 03) worked as a security guard at § 87(2)(b) a homeless shelter located at § 87(2)(b) in the Bronx. § 87(2)(b) said that, preceding the officers' arrival, he was assaulted by the spouse of another § 87(2)(b) security guard. After the assault, but before officers arrived on the scene, § 87(2)(b) went outside for a walk on § 87(2)(b) and upon returning, he saw that multiple

officers, including SGT Stevens, had arrived at § 87(2)(b). Another of § 87(2)(b) co-workers, § 87(2)(b) was outside of § 87(2)(b) as well, and § 87(2)(b) attempted to tell § 87(2)(b) that he should speak with the police about the assault. § 87(2)(b) replied to § 87(2)(b) "I don't want to talk with police, I don't fuck with police." § 87(2)(b) stated that he may have said something to the officers on scene as well, though he was not able to recall exactly what he said.

§ 87(2)(b) stated that he stopped as he saw the officers and SGT Stevens approach him. SGT Stevens immediately told § 87(2)(b) that he was under arrest, and when § 87(2)(b) asked what he was being arrested for, SGT Stevens stated, "disorderly conduct." § 87(2)(b) began to verbally object, and SGT Stevens immediately grabbed § 87(2)(b) on the arm. § 87(2)(b) stated, "What are y'all doing," but SGT Stevens pulled § 87(2)(b) forcibly to the ground. § 87(2)(b) did not physically resist in any way. § 87(2)(b) was then placed in handcuffs on the ground. § 87(2)(b) stated that the handcuffs exacerbated previously existing injuries to his back, arms, and wrist.

§ 87(2)(b) provided an After Care Summary from medical treatment § 87(2)(b) Board Review 24), which was summarized by the CCRB (Board Review 23). § 87(2)(b) reported that he was experiencing back pain and shoulder pain. § 87(2)(a) – PHL 18(6)

§ 87(2)(b) (Board Review 25), the Director of § 87(2)(b) stated that she arrived on scene as § 87(2)(b) was laid out on the ground. § 87(2)(b) stated that officers were repeatedly asking § 87(2)(b) to calm down.

Both PO Diaz (Board Review 04) and SGT Stevens (Board Review 05), stated that SGT Stevens arrived on scene and learned from PO Rodriguez, PO Diaz, and § 87(2)(b) that there had been a fight between two security guards at § 87(2)(b) and that both security guards had left the scene. SGT Stevens and PO Diaz observed § 87(2)(b) walking in the middle of the street, screaming, yelling, and cursing at officers. SGT Stevens specifically recalled § 87(2)(b) yelling that he does not, "Fuck with police," which SGT Stevens took to mean that he does not like to deal with police or speak with police. SGT Stevens believed that § 87(2)(b) was yelling at both the officers collectively and at his coworker, § 87(2)(b).

SGT Stevens and PO Diaz stated that § 87(2)(b) walked up to SGT Stevens such that they were standing close to each other. SGT Stevens asked § 87(2)(b) if he wanted to get, "locked up" and § 87(2)(b) replied by asking what he would be locked up for, and SGT Stevens stated that it would be disorderly conduct. Multiple officers, including PO Breheny, PO Diaz, and PO Rodriguez, were also on the sidewalk, a few feet behind SGT Stevens. SGT Stevens determined that § 87(2)(b) was not calming down, was continuing to scream and yell and was refusing to have a "real conversation" about his behavior. SGT Stevens stated that the only thing § 87(2)(b) could have been arrested for at the time of this incident was disorderly conduct, and that he determined that § 87(2)(b) should be arrest for disorderly conduct. Both PO Diaz and SGT Stevens stated that SGT Stevens reached towards § 87(2)(b) and grabbed his arm. SGT Stevens stated that § 87(2)(b) immediately resisted by pulling his arm back away from SGT Stevens, and PO Diaz stated that § 87(2)(b) flailed and tightened up his arms. SGT Stevens then conducted a forcible takedown on § 87(2)(b). SGT Stevens was able to successfully get § 87(2)(b) onto the ground, whereupon he was placed into handcuffs.

A search for EVENTS in the 43rd Precinct on the morning of February 14, 2020, identified only one phone call reporting an incident at § 87(2)(b) in the Bronx (Board Review 13). This phone call was made by § 87(2)(b) the director of § 87(2)(b) and reported the alleged fight that § 87(2)(b) was involved in. The CCRB did not identify any complaints regarding § 87(2)(b) acting in a loud or disruptive manner following the alleged fight.

The Threat, Resistance, and Injury Report (TRI) for this incident prepared by SGT Stevens

(Board Review 06) stated that § 87(2)(b) got, “verbally aggressive with officers when confronted regarding the 911 call. The subject was removed to the 43 Precinct for disorderly conduct while yelling at officers on the street and sidewalk for an extended period of time. A forcible takedown was used to handcuff the subject/perp.”

The CCRB also obtained the summons issued to § 87(2)(b) by PO Diaz (Board Review 06) for disorderly conduct, specifically for violent or threatening behavior. The narrative of the summons stated that PO Diaz observed § 87(2)(b) “on a public sidewalk, with intent to cause disruption, act in a violent and threatening manner towards officers.” That summons is no longer listed in the New York State E-Courts database (Board Review 27).

The CCRB obtained a video recording of this incident taken by an unknown witness (Board Review 07), provided by § 87(2)(b) which appears to have been recorded from a building adjacent to § 87(2)(b) in the Bronx. At timecode 0:00, § 87(2)(b) can be seen to be facing SGT Stevens, PO Beheny, PO Adames, PO Diaz, and PO Rodriguez. At timecode 0:01, SGT Stevens reaches forward towards § 87(2)(b) initiating physical contact, whereupon § 87(2)(b) appears to fall to the ground almost immediately.

PO Diaz's BWC (Board Review 08), captured SGT Stevens' time on scene and his use of force. At timecode 2:11, when SGT Stevens originally arrives on scene, PO Diaz approaches him and states, “It’s like an internal thing, they beat § 87(2)(b) up but he does not want to do anything, he went storming off.” PO Rodriguez states that § 87(2)(b) stated he does not want to deal with cops. At timecode 3:16, SGT Stevens states, “So where we are at right now is that nobody is injured, it was all internal, and nobody wants to do anything.”

At timecode 4:21 § 87(2)(b) first appears in the video walking south across § 87(2)(b) towards the sidewalk in front of § 87(2)(b). SGT Stevens states, “You alright?” and § 87(2)(b) becomes upset, stating, “[...] bitches getting shot, everybody getting shot! Gangster, gangster! Yeah I’m aite! Who I am, don’t fuck with police, fuck four-seven, fuck four deuce, fuck all of y’all.” § 87(2)(b) walks to the south of the NYPD officers, in front of § 87(2)(b) approaches § 87(2)(b) and states to him, “I don’t care if its [inaudible], y’all can suck my dick too! I don’t care who called the cops nigger!” § 87(2)(b) then states, in relation to individual who allegedly assaulted him, “I handle it on my own!” As § 87(2)(b) is seen in the street, and during the time that he interacts with officers, there are no moving vehicles on § 87(2)(b) and there are no pedestrians on the sidewalk aside from § 87(2)(b).

At timecode 4:53, § 87(2)(b) walks towards SGT Stevens, and repeatedly states, “Fuck, who you looking at,” before stating “Look somewhere else!” At this point in the video § 87(2)(b) is standing less than five feet away from SGT Stevens, and at timecode 4:57 § 87(2)(b) walks even closer to SGT Stevens, crosses his arms, and stops approximately two feet away from SGT Stevens. SGT Stevens asks if § 87(2)(b) wants to get “locked up,” and then states that he could be arrested for “disorderly conduct.” § 87(2)(b) replies, “Niggers [inaudible] me, nigger! For real.” Immediately after § 87(2)(b) states, “For real,” at timecode 5:02, SGT Stevens grabs § 87(2)(b) by his left shoulder and physically turns his body to the left, and then uses two hands to push § 87(2)(b) to the ground. § 87(2)(b) is then placed into handcuffs by SGT Stevens.

NYPD Patrol Guide Procedure 221-01 (Board Review 09) states that officers may use force when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise to protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In determining whether the use of force is reasonable, members are instructed to consider numerous factors, including the nature and severity of the circumstances, the immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, whether the subject is attempting to resist custody or evade arrest by flight, the number of subjects in comparison to member-of-service, and the presence of a hostile crowd or agitators. The Patrol Guide requires that, when appropriate and consistent with personal safety, members of the service use de-escalation techniques to safely gain voluntary compliance from a subject.

A person is guilty of disorderly conduct when, with an intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof, he or she: (1) engages in fighting or in violent, tumultuous, or threatening behavior; (2) makes unreasonable noise; (3) uses abusive or obscene language, or makes an obscene gesture; (4) without lawful authority, disturbs any lawful assembly; (5) obstructs vehicular or pedestrian traffic; (6) congregates with other persons in a public place and refuses to comply with an order to disperse; or (7) creates a hazardous or physically offensive condition (Board Review 10).

The court, in analyzing disorderly conduct cases, have emphasized that there is a key “public harm” element. In People v. Baker, 20 N.Y.3d 354 (2013) (Board Review 11), the court determined that an incident in which a defendant made two abusive statements claiming harassment by police officers seated in a patrol car did not constitute disorderly conduct. The court noted that there must be proof of an intent to threaten public safety, peace or order. The statements by the defendant in People v. Baker were not accompanied by menacing conduct, and the arresting officer in People v. Baker had immediate backup from other members of the service. The court further determined that the defendant’s limited interaction with officers was not likely to disrupt peace and order in the vicinity and noted that there was no evidence to indicate that a crowd was gathering or presented a danger to officers. Finally, the court determined that the fact that statements were directed at a police officer, a “party trained to defuse situations involving angry or emotionally distraught persons,” further undermined any inference that there was a threat of public harm.

Though § 87(2)(b) became upset and disorderly upon seeing officers, SGT Stevens and the other officers on scene were aware that § 87(2)(b) had just been the victim of an alleged assault. § 87(2)(g)

§ 87(2)(b) § 87(2)(b) § 87(2)(b) § 87(2)(b) Though § 87(2)(b) was yelling and cursing, he did not initiate physical contact or verbally threaten violence towards any party present on scene. § 87(2)(g)

§ 87(2)(b) is therefore recommended that **Allegation A be substantiated.**

§ 87(2)(g) § 87(2)(b) was not presenting an immediate threat or direct threat to any person, § 87(2)(b) was not attempting to flee the scene, there was no hostile crowd or any agitators, and § 87(2)(b) was overwhelmingly outnumbered by officers.

§ 87(2)(g) § 87(2)(b) It is therefore recommended that **Allegation B be substantiated.**

Allegation (C) Abuse of Authority: At the 43rd Precinct Stationhouse, Sergeant Richard Stevens did not obtain medical treatment for § 87(2)(b)

Allegation (D) Abuse of Authority: At the 43rd Precinct Stationhouse, Police Officer Christian Diaz did not obtain medical treatment for § 87(2)(b)

It is undisputed that, after being arrested at § 87(2)(b) in the Bronx, § 87(2)(b) was transported to the 43rd Precinct stationhouse, where he was lodged in a holding cell. It is further undisputed that, during his time at the 43rd Precinct stationhouse, officers identified an

active I-Card for § 87(2)(b) at the 47th Precinct, and PO Diaz and PO Rodriguez subsequently drove § 87(2)(b) to the 47th Precinct stationhouse.

§ 87(2)(b) stated that he first requested medical attention when he was inside of his holding cell at the 43rd Precinct stationhouse, right after being shackled. § 87(2)(b) stated that the force used, and the handcuffs that he was kept in during this incident, exacerbated existing injuries to his back, arms, and wrist. § 87(2)(b) requested medical attention three to four times in the presence of various officers who he was unable to recall or describe. § 87(2)(b) was told by an officer he was unable to describe that if he was taken to the hospital, the processing of his arrest would be slower. § 87(2)(b) wanted to get out of custody and thus he did not further indicate his desire to obtain medical treatment to that particular officer. However, § 87(2)(b) was subsequently informed that he would be transported to the 47th Precinct stationhouse for an open I-Card. § 87(2)(b) was escorted to a patrol vehicle by unknown officers for transport and he yelled, “My back! My back!” En route to the 47th Precinct stationhouse, § 87(2)(b) repeatedly complained about pain to his back, but did not specifically request medical attention. However, § 87(2)(b) stated that he believed it to be clear that he was in pain and was medically distressed.

§ 87(2)(b) (Board Review 12), § 87(2)(b) brother, stated that he went to the 43rd Precinct stationhouse while § 87(2)(b) was being held there. § 87(2)(b) heard § 87(2)(b) yell, “I can’t breathe,” “It hurts,” and “I want to talk with an officer,” but did not hear if anyone replied to his brother.

There were negative results for a Medical Treatment of Prisoner Report (Board Review 06) or any AIDED report prepared for § 87(2)(b) (Board Review 13). In the 43rd Precinct stationhouse’s Command Log, the entry for § 87(2)(b) arrest listed his condition as “drunk,” and no request for medical attention is documented.

BWC footage captures repeated complaints of injury by § 87(2)(b) while in the custody of the 43rd Precinct. In BWC footage recorded by PO Diaz (Board Review 08), at timecode 8:05, while being removed from PO Diaz and PO Rodriguez’s police vehicle into the 43rd Precinct stationhouse, § 87(2)(b) states, “Yo, I have a broken wrist! Yo, y’all niggers are crazy, I have a fucking broken wrist!”

Additional statements by § 87(2)(b) are captured in a BWC video recorded in the holding cell area of the 43rd Precinct stationhouse by SGT Stevens (Board Review 14). At timecode 00:26, § 87(2)(b) states, “Bro, my fucking arm feels broken!” to PO Diaz as SGT Stevens stands next to him. At timecode 1:58, § 87(2)(b) states again, “This shit hurt bro, my arm broke!” At the conclusion of this video, at timecode 3:48, PO Diaz and PO Rodriguez, who were inside the holding cell with § 87(2)(b) and SGT Stevens, who was standing immediately outside the door of § 87(2)(b) holding cell, exit the holding cell area of the 43rd Precinct stationhouse after placing shackles on § 87(2)(b) without § 87(2)(b) being offered medical attention.

Finally, as § 87(2)(b) is removed from the holding cell area of the 43rd Precinct stationhouse and escorted to a police vehicle for transport to the 47th Precinct stationhouse, § 87(2)(b) again repeatedly complains of injury to his back and wrist. In a video recorded by PO Diaz (Board Review 15), started at timecode 1:23, § 87(2)(b) repeatedly complains of pain to his back. At timecode 5:05, while standing next to the police vehicle that will transport him to the 47th Precinct stationhouse, and again towards PO Diaz and SGT Stevens, § 87(2)(b) states that, “This shit hurt bro, I’ve got a back problem – I’ve got a severe back problem, bro, and it’s tensing my back!” § 87(2)(b) states that he cannot sit in the police vehicle without pain. As § 87(2)(b) secured in the police vehicle at timecode 7:00, he repeatedly yells in pain. In the police vehicle, which was driven by PO Diaz with PO Rodriguez and § 87(2)(b) as passengers, at timecode 13:46, § 87(2)(b) states “Yo, I need to go to the doctor bro, I feel like I’m about to faint!” § 87(2)(b) then states, “I need a doctor, I need wat- anything! I feel like I’m about to faint bro, I need anything, bro!” At timecode 15:13 § 87(2)(b) states, “I need to

go to the hospital, you brought me here?" At timecode 15:56, § 87(2)(b) states, "Yo, I need to stop, I can't keep going like this! I can't keep going like this, son! This shit hurts!"

During their CCRB interviews, neither PO Diaz nor SGT Stevens had any recollection of § 87(2)(b) requesting medical attention or complaining of pain while in the custody at the 43rd Precinct stationhouse.

SGT Stevens, upon being presented with BWC footage, stated that he still did not have an independent recollection of § 87(2)(b) ever complaining of injury or requesting medical attention. SGT Stevens stated that he did not know if EMS was ever summoned to the 43rd Precinct stationhouse, which he described as the proper procedure, and further stated that he did not know if § 87(2)(b) was ever asked if he needed medical attention. SGT Stevens stated that normally this would be the responsibility of the arresting officer.

When presented with the above BWC footage, PO Diaz, who was the arresting officer during this incident, stated that he did not have any recollection of § 87(2)(b) complaining of a broken wrist doing during this incident. PO Diaz stated that, based on his understanding of the Patrol Guide, if an individual complains of pain or injury and requests medical attention, the arresting officer is obligated to obtain medical treatment for him. PO Diaz did not recall if § 87(2)(b) was offered medical attention or if any effort was made to provide him with medical attention.

Patrol Guide Procedure 210-04 (Board Review 16) states that, when a prisoner requires medical attention, the arresting officer is required to notify an officer should request an ambulance and remove the prisoner to the hospital if necessary and notify the desk officer that the prisoner requires medical attention. If a prisoner received medical treatment, refuses medical treatment after claiming to be injured, or is in apparent need of treatment, the arresting officer must prepare a Medical Treatment of Prisoner Report (MTPR). Patrol Guide Procedure 210-04 further states that the officer's supervisor is responsible for ensuring that the MTPR is prepared, reviewing the MTPR, and signing off on the MTPR.

As PO Diaz was § 87(2)(b) arresting officer, PO Diaz was therefore responsible for ensuring § 87(2)(b) received medical attention if he required it. § 87(2)(b) is captured on BWC repeatedly stating that he was injured during this incident, both before being taken into the 43rd Precinct stationhouse, while inside the 43rd Precinct stationhouse, and as he removed from the 43rd Precinct stationhouse for transport to the 47th Precinct stationhouse, and for every request PO Diaz was within a few feet of § 87(2)(b) BWC footage further captured that § 87(2)(b) not only complained of injury, but made direct requests to be taken to a doctor and the hospital while en route to the 47th Precinct stationhouse, in the presence of PO Diaz. PO Diaz was also aware that § 87(2)(b) had not only been the victim of an alleged assault prior to encountering officers, but that SGT Stevens had used force on him during the process of his arrest. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegation C** be **substantiated**.

As PO Diaz's supervisor, SGT Stevens was responsible for ensuring that PO Diaz addressed § 87(2)(b) medical needs. As such, given that SGT Stevens was present for several of § 87(2)(b) complaints of injury and pain, specifically the requests captured on BWC inside of the 43rd Precinct stationhouse holding cells and while being taken to a police vehicle for transport to the 47th Precinct stationhouse, § 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegation D** be **substantiated**.

Allegation (E) Abuse of Authority: At the 47th Precinct Stationhouse, Sergeant Brian Wolver did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) stated that, upon arriving at the 47th Precinct stationhouse, he asked an officer in a white shirt what his charges were. The officer responded to § 87(2)(b) that he was arrested for “assault three,” and § 87(2)(b) did not ask that officer for medical attention. § 87(2)(b) was placed in a holding cell in the 47th Precinct stationhouse. § 87(2)(b) repeatedly told multiple officers in the holding cell area that he was in pain and required medical attention, including PO Joseph. Later, a male officer who § 87(2)(b) could not describe came into the holding cell area and told § 87(2)(b) it would take longer to process him if he were to receive medical attention. § 87(2)(b) then decided to deal with the pain until he was released from custody, but he could not recall if he responded to the male officer. § 87(2)(b) remained in the custody of the 47th Precinct until approximately 4:00 or 5:00 p.m. on February 14, 2020, at which time he was released. At no point did § 87(2)(b) receive any medical attention during this incident.

There were negative results for a Medical Treatment of Prisoner Report (Board Review 06) or AIDED report prepared for § 87(2)(b) (Board Review 13). The 47th Precinct’s Command Log entry for § 87(2)(b) arrest, prepared by SGT Wolver, listed § 87(2)(b) condition as “Apparently Normal,” and, though the stamp is faint, SGT Wolver confirmed in his CCRB interview that it listed that § 87(2)(b) did not request medical attention.

BWC footage recorded by PO Diaz (Board Review 15) shows that § 87(2)(b) clearly and repeatedly requested medical attention from the moment he was brought into the 47th Precinct stationhouse. At timecode 23:27, § 87(2)(b) is escorted to the front desk of the 47th Precinct stationhouse, and he states to SGT Wolver, “I can’t stand, bro. I can’t stand, bro – my arm is leaning, bro. I need medical attention, that I’ve been asking for y’all. Y’all got anybody here?” At timecode 24:41, § 87(2)(b) is asked by SGT Wolver if he is sick, injured, or needs to go to the hospital. § 87(2)(b) replies, “My arm – but officer, I’m trying to figure out what is this that you’re talking about?” in reference to a conversation about the I-Card that § 87(2)(b) was being transferred for. At timecode 25:35, SGT Wolver asks again if § 87(2)(b) is sick, injured, or needs to go the hospital. § 87(2)(b) replies, “Yes,” multiple times, and SGT Wolver states, “L T - he needs assist on medical attention.” § 87(2)(b) is then placed in a holding cell, and PO Diaz’s BWC footage ends shortly thereafter.

Stationhouse surveillance footage from the holding cells of the 47th Precinct (Board Review 20), exported separately as a playable video (Board Review 25), captures § 87(2)(b) time in the holding cells, though there is no audio. The timecodes that follow refer to the separately playable video (Board Review 25). At timecode 44:43, § 87(2)(b) is escorted into the first floor holding cell area by PO Diaz and PO Rodriguez. At timecode 50:34, § 87(2)(b) is placed into the holding cell by PO Diaz and PO Rodriguez, as PO Joseph and PO Espinoza observe. Then, beginning at timecode 52:12, and continuing until timecode 57:50, PO Joseph, PO Espinoza, and SGT Wolver appear to have a continuous verbal interaction with § 87(2)(b). However, § 87(2)(b) is shown to remain in the 47th Precinct stationhouse holding cells with no medical attention provided at any point in the captured footage.

During their CCRB statements, PO Espinoza (Board Review 17), PO Joseph (Board Review 18), and SGT Wolver (Board Review 19) did not have any recollection of this incident or of encountering § 87(2)(b). Upon being presented with this stationhouse footage, PO Joseph, PO Espinoza, and SGT Wolver maintained they did not have any recollection of speaking with § 87(2)(b) in the holding cells of the 47th Precinct stationhouse.

SGT Wolver, upon being presented with the BWC footage showing his interaction with § 87(2)(b) stated that even though multiple additional requests for medical attention were captured in the footage and no retraction was captured in the footage, the only reason that the

command log would state that an individual had not requested medical attention is if they later retracted that request. SGT Wolvers stated that, if § 87(2)(b) did not retract his request for medical attention at the front desk, he must have done so during a conversation that took place in the holding cells. However, when SGT Wolvers was asked again if he had any recollection of the conversations within the holding cells, he stated that he did not.

Given that SGT Wolvers was assigned as the desk sergeant at the 47th Precinct stationhouse, this allegation has been pled to him.

Patrol Guide Procedure 210-04 (Board Review 16) requires that during arrest processing the desk officer direct, in non-emergency situations, that prisoners requiring medical treatment be removed to a local hospital for treatment and evaluation.

BWC footage captured § 87(2)(b) repeatedly request medical attention from SGT Wolvers during this incident at the front desk of the 47th Precinct stationhouse. However, according to § 87(2)(b) own statement, § 87(2)(b) may have later had a conversation revoking that request. Further, SGT Wolvers appears to have had an extended conversation with § 87(2)(b) in the holding cells after arrest processing, of which no officer present remembers the content. SGT Wolvers stated that § 87(2)(b) could have retracted his request for medical attention after the interaction captured at the front desk. § 87(2)(g) § 87(2)(b)

§ 87(2)(b) It is therefore requested that Allegation E be unsubstantiated.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 21).

- SGT Stevens has been a member-of-service for eight years and has been a subject in three CCRB complaints and nine allegations, none of which were substantiated. § 87(2)(g)
- PO Diaz has been a member-of-service for six years and has been a subject in three CCRB complaints and 10 allegations, of which two were substantiated.
 - 201908001 involved two substantiated allegations of discourtesy word. The Board recommended Command Level Instructions and the NYPD imposed Instructions.
 - § 87(2)(g)
- SGT Wolvers has been a member-of-service for 14 years and has been a subject in one previous CCRB complaint and one allegation, which was not substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of January 31, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (Board Review 28).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 14

Investigator:	<u>Matthew Donaghy</u>	<u>Inv. Matthew Donaghy</u>	<u>February 16, 2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Cassandra Fenkel</u>	<u>IM Cassandra Fenkel</u>	<u>February 10, 2022</u>
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date